

DETROIT–MUMBAI HARDCORE MUSIC LICENSE (DML-HX)

LICENSE AGREEMENT VERSION 2.0

A NICKEL 9 PRODUCTION

RIGHTS HOLDER IDENTIFICATION

Production Company: Nickel 9 Production.

Co-Owners and Rights Holders:

Name	Role	Ownership Interest
Marshall Bruce Mathers III	Co-Owner, Executive Producer, Artist	Equal Undivided Interest.
Royce da 5'9" (Ryan Daniel Montgomery)	Co-Owner, Executive Producer, Artist	Equal Undivided Interest.

All references to "Rights Holder," "The Architect(s)," or "Co-Owners" in this Agreement shall refer collectively to the above-named individuals and Nickel 9 Production.

PREAMBLE

THIS DETROIT–MUMBAI HARDCORE MUSIC LICENSE AGREEMENT ("Agreement" or "License") constitutes a legally binding contract between the Rights Holder(s) identified herein and any individual, entity, corporation, or organization ("Licensee," "You," or "Your") that accesses, uses, reproduces, distributes, performs, displays, or otherwise exploits the Works defined below.

BY ACCESSING, DOWNLOADING, STREAMING, PERFORMING, SAMPLING, SYNCHRONIZING, OR OTHERWISE USING THE WORKS, YOU EXPRESSLY

ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE BOUND BY ALL TERMS AND CONDITIONS OF THIS AGREEMENT. IF YOU DO NOT AGREE TO THESE TERMS, YOU ARE PROHIBITED FROM ANY USE OF THE WORKS.

ARTICLE I: DEFINITIONS

1.1 "Works" shall mean and include, without limitation:

- (a) BOOMDAY P1 (Part I).
- (b) BOOMDAY P2 (Part II).
- (c) BOOMDAY Px, where $x \in \{1, 2, 3, 4\}$ and all future numerical variants.
- (d) All master recordings, stems, multitracks, instrumentals, acapellas, alternate mixes, extended versions, radio edits, clean versions, and remasters.
- (e) All derivative works, remixes, interpolations, samples, loops, and sonic elements extracted therefrom.
- (f) All AI-augmented, machine-learning-processed, or algorithmically-enhanced versions.
- (g) All live recordings, concert captures, freestyle sessions, and performance documentation.
- (h) All visual accompaniments, cover artwork, promotional materials, and associated metadata.
- (i) Any and all future expansions, sequels, or continuations bearing the BOOMDAY designation.

1.2 "Rights Holder," "The Architect(s)," or "Co-Owners" shall mean Marshall Bruce Mathers III, Royce da 5'9" (Ryan Daniel Montgomery), and Nickel 9 Production, collectively and individually, including their authorized assigns, heirs, estates, and legal successors who maintain full ownership of the Works.

1.3 "Nickel 9 Production" shall mean the production entity and imprint under which the Works are created, produced, and distributed, owned and operated by the Co-Owners.

1.4 "Commercial Use" shall mean any use of the Works that directly or indirectly generates revenue, profit, monetary compensation, or economic benefit, including but not limited to: advertising, marketing, brand partnerships, sponsored content, merchandise, synchronization licensing, and paid streaming/downloads.

1.5 "Non-Commercial Use" shall mean personal, educational, or cultural use that generates no direct or indirect revenue and serves no commercial purpose whatsoever.

1.6 "Synchronization" shall mean the integration, timing, or pairing of the Works with visual media including but not limited to: films, television, documentaries, advertisements, video games, mobile applications, social media content, and digital/physical presentations.

ARTICLE II: JURISDICTIONAL AUTHORITY

2.1 PRIMARY JURISDICTIONS

This Agreement shall be governed by and construed in accordance with the laws of:

- (a) The State of Michigan, United States of America (Detroit jurisdiction).
- (b) The State of Maharashtra, Republic of India (Mumbai jurisdiction).

2.2 EXTENDED TERRITORIAL SCOPE

This License extends to and is enforceable in:

- (a) All fifty (50) United States and U.S. territories.
- (b) All states and union territories of the Republic of India.
- (c) All member states of the Berne Convention for the Protection of Literary and Artistic Works.
- (d) All member states of the World Intellectual Property Organization (WIPO).
- (e) All digital platforms, streaming services, and internet-accessible domains regardless of server location.
- (f) All decentralized networks, blockchain-based platforms, and Web3 ecosystems.
- (g) Any physical or digital medium where the Works may be accessed by human perception.

2.3 CHOICE OF LAW

In the event of conflict between jurisdictions, the law most favorable to the Rights Holder shall apply. The Rights Holder reserves sole discretion in selecting the forum for any legal proceedings.

ARTICLE III: OWNERSHIP AND INTELLECTUAL PROPERTY RIGHTS

3.1 ABSOLUTE OWNERSHIP

All rights, title, and interest in and to the Works, including but not limited to all copyrights, neighboring rights, moral rights, trademark rights, trade secrets, and any other intellectual property rights recognized under any jurisdiction worldwide, are and shall remain the sole and exclusive property of Marshall Bruce Mathers III, Royce da 5'9" (Ryan Daniel Montgomery), and Nickel 9 Production as Co-Owners.

3.2 CO-OWNERSHIP STRUCTURE

The Co-Owners hold equal, undivided interests in the Works. All decisions regarding licensing, exploitation, and enforcement shall require mutual consent of the Co-Owners or their authorized representatives.

3.3 NO TRANSFER OF OWNERSHIP

This License does not constitute a sale, assignment, or transfer of any ownership interest in the Works. No provision of this Agreement shall be construed to grant Licensee any ownership rights whatsoever.

3.4 RESERVATION OF RIGHTS

All rights not expressly granted herein are hereby reserved by the Rights Holder. The Rights Holder retains the unrestricted right to license the Works to any other party, modify the Works, create derivative works, and exploit the Works in any manner not inconsistent with this Agreement.

3.5 ANTI-DILUTION CLAUSE

Licensee shall not, under any circumstances:

- (a) Register, attempt to register, or claim ownership of any trademark, copyright, or intellectual property related to the Works.
- (b) Acquire, assert, or maintain any lien, security interest, or encumbrance on the Works.

- (c) Challenge the validity of the Rights Holder's ownership or intellectual property registrations.
 - (d) Assist any third party in any of the foregoing actions.
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ARTICLE IV: GRANT OF LICENSE

4.1 SCOPE OF LICENSE

Subject to strict compliance with all terms and conditions herein, the Rights Holder grants Licensee a limited, non-exclusive, non-transferable, revocable license to:

- (a) Stream and listen to the Works for personal, non-commercial enjoyment.
- (b) Perform the Works publicly in non-commercial venues with proper attribution.
- (c) Share the Works via authorized platforms that maintain licensing agreements with the Rights Holder.
- (d) Reference or quote the Works in critical, educational, or journalistic contexts under applicable fair use doctrine.

4.2 CONDITIONAL COMMERCIAL RIGHTS

Commercial Use of the Works is strictly prohibited without:

- (a) Prior written authorization from all Co-Owners.
- (b) Execution of a separate Commercial License Agreement.
- (c) Payment of all applicable licensing fees, royalties, and advances.
- (d) Compliance with all attribution and credit requirements.

4.3 SYNCHRONIZATION LICENSING

Synchronization rights are NOT included in this License. Any Synchronization use requires:

- (a) A separate, individually negotiated Synchronization License Agreement.
 - (b) Payment of synchronization fees determined by the Rights Holder.
 - (c) Approval of the visual content by the Rights Holder.
 - (d) Compliance with all moral rights protections.
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ARTICLE V: MANDATORY ATTRIBUTION REQUIREMENTS

5.1 ATTRIBUTION STANDARD

All permitted uses of the Works shall include the following attribution, displayed prominently and legibly:

"BOOMDAY — A Nickel 9 Production. Detroit × Mumbai. Original Work by Marshall Mathers and Royce da 5'9". All Rights Reserved."

5.2 ATTRIBUTION SPECIFICATIONS

- (a) Written attributions must use a font size no smaller than 50% of the largest text in the associated content.
- (b) Spoken attributions must be clearly audible and not obscured by other audio elements.
- (c) Digital attributions must be visible without scrolling or user interaction.
- (d) Metadata attributions must be included in all applicable ID3 tags, ISRC codes, and content identification systems.

5.3 ATTRIBUTION VIOLATIONS

Failure to provide proper attribution constitutes:

- (a) A material breach of this Agreement.
- (b) Automatic termination of all rights granted herein.
- (c) Grounds for immediate legal action and statutory damages.

ARTICLE VI: PROHIBITED USES AND RESTRICTIONS

6.1 ABSOLUTE PROHIBITIONS

Licensee shall NOT, under any circumstances:

- (a) **Corporate Misappropriation.** Use the Works as background music, hold music, elevator music, or ambient audio in corporate, retail, or commercial environments without express authorization.

- (b) **Content Distortion.** Alter, edit, remix, or modify the Works in any manner that distorts, mutilates, or misrepresents the artistic intent, cultural message, or political consciousness embedded therein.
- (c) **Ideological Exploitation.** Use the Works in connection with hate speech, discriminatory content, misinformation, disinformation, propaganda, or any ideology contrary to the values expressed in the Works.
- (d) **AI Training Prohibition.** Use, submit, or permit the Works to be used as training data, input, or reference material for any artificial intelligence model, machine learning system, neural network, or algorithmic content generation tool without prior written consent and appropriate compensation.
- (e) **Fraudulent Attribution.** Claim authorship, co-authorship, production credit, or "inspiration credit" for the Works or any portion thereof.
- (f) **Unauthorized Sampling.** Sample, interpolate, or incorporate any portion of the Works into new compositions without a valid Sample Clearance Agreement.
- (g) **NFT/Blockchain Exploitation.** Mint, tokenize, or create non-fungible tokens (NFTs) or other blockchain-based assets incorporating the Works without express written authorization.
- (h) **Sublicensing.** Grant, sell, or transfer any rights in the Works to any third party.
- (i) **Territorial Circumvention.** Circumvent geo-restrictions, digital rights management (DRM), or content identification systems protecting the Works.

6.2 CONTEXTUAL RESTRICTIONS

The Works shall NOT be used in connection with:

- (a) Political campaigns, candidates, or parties without express written endorsement.
- (b) Pharmaceutical, tobacco, alcohol, cannabis, gambling, or adult entertainment advertising.
- (c) Military, law enforcement, or surveillance industry promotion.
- (d) Any product, service, or entity that the Rights Holder deems inconsistent with the artistic integrity of the Works.

ARTICLE VII: ROYALTIES, COMPENSATION, AND REVENUE

7.1 ROYALTY STRUCTURE

- (a) All streaming royalties shall flow directly to the Co-Owners through applicable PROs (Performing Rights Organizations) and distribution platforms.
- (b) All mechanical royalties for reproductions shall be paid to the Co-Owners or their designated publisher.
- (c) All synchronization fees shall be negotiated on a case-by-case basis with minimum rates established by Nickel 9 Production.
- (d) All performance royalties for public performances shall be collected by the Rights Holder's designated PRO affiliates.

7.2 REVENUE DISTRIBUTION

All revenues, royalties, and proceeds from the Works shall be distributed equally among the Co-Owners in accordance with their equal, undivided ownership interests.

7.3 AUDIT RIGHTS

The Rights Holder reserves the right to audit any Licensee's use of the Works upon thirty (30) days written notice. Licensee shall maintain accurate records of all uses for a minimum of seven (7) years.

7.4 LATE PAYMENT PENALTIES

Any royalty payments more than thirty (30) days overdue shall accrue interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is greater.

ARTICLE VIII: MORAL RIGHTS AND ARTISTIC INTEGRITY

8.1 MORAL RIGHTS PROTECTION

The Rights Holder asserts and retains all moral rights in the Works, including but not limited to:

- (a) The right of attribution (paternity).
- (b) The right of integrity.
- (c) The right against false attribution.
- (d) The right of disclosure.

8.2 ARTISTIC VISION CLAUSE

The Works embody a specific artistic vision, cultural message, and conscious intent. Any use that undermines, contradicts, or dilutes this vision constitutes a violation of the Rights Holder's moral rights and a material breach of this Agreement.

8.3 MESSAGE INTEGRITY STANDARD

"Detroit forged the fire. Mumbai sharpened the edge."

This artistic philosophy is integral to the Works. Uses that separate the Works from their cultural roots or conscious messaging are strictly prohibited.

ARTICLE IX: INDEMNIFICATION

9.1 LICENSEE INDEMNIFICATION

Licensee shall indemnify, defend, and hold harmless the Rights Holder, the Co-Owners, Nickel 9 Production, their agents, representatives, successors, and assigns from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising from:

- (a) Licensee's breach of any term of this Agreement.
- (b) Licensee's unauthorized use of the Works.
- (c) Any third-party claims related to Licensee's use of the Works.
- (d) Any violation of applicable laws in connection with Licensee's use of the Works.

9.2 SURVIVAL

This indemnification obligation shall survive termination of this Agreement.

ARTICLE X: LIMITATION OF LIABILITY

10.1 DISCLAIMER

THE WORKS ARE PROVIDED "AS IS" WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

10.2 LIMITATION

IN NO EVENT SHALL THE RIGHTS HOLDER, THE CO-OWNERS, OR NICKEL 9 PRODUCTION BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING FROM LICENSEE'S USE OF THE WORKS.

10.3 MAXIMUM LIABILITY

THE RIGHTS HOLDER'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE AMOUNT ACTUALLY PAID BY LICENSEE FOR THE SPECIFIC USE GIVING RISE TO THE CLAIM.

ARTICLE XI: TERMINATION

11.1 AUTOMATIC TERMINATION

This License shall terminate immediately and automatically, without notice, upon:

- (a) Any breach of any term or condition herein.
- (b) Failure to provide proper attribution.
- (c) Any unauthorized commercial use.
- (d) Any prohibited use as defined in Article VI.
- (e) Licensee's bankruptcy, insolvency, or dissolution.

11.2 TERMINATION FOR CONVENIENCE

The Rights Holder may terminate this License at any time, for any reason or no reason, upon written notice to Licensee.

11.3 EFFECT OF TERMINATION

Upon termination:

- (a) All rights granted herein shall immediately cease.
- (b) Licensee shall immediately cease all use of the Works.

- (c) Licensee shall destroy all copies of the Works in their possession or control.
- (d) Licensee shall provide written certification of compliance within ten (10) days.

11.4 SURVIVAL

Articles III, V, VI, VIII, IX, X, XII, and XIII shall survive termination of this Agreement.

ARTICLE XII: DISPUTE RESOLUTION

12.1 INFORMAL RESOLUTION

Prior to initiating formal proceedings, the parties shall attempt to resolve disputes through good-faith negotiation for a period of thirty (30) days.

12.2 ARBITRATION

Any dispute not resolved informally shall be submitted to binding arbitration under the rules of the American Arbitration Association (for U.S. disputes) or the Mumbai Centre for International Arbitration (for India disputes), at the Rights Holder's election.

12.3 INJUNCTIVE RELIEF

Notwithstanding the foregoing, the Rights Holder may seek immediate injunctive relief in any court of competent jurisdiction to prevent irreparable harm from unauthorized use of the Works.

12.4 ATTORNEYS' FEES

The prevailing party in any dispute shall be entitled to recover reasonable attorneys' fees and costs from the non-prevailing party.

ARTICLE XIII: GENERAL PROVISIONS

13.1 ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties concerning the subject matter hereof and supersedes all prior agreements, understandings,

negotiations, and discussions.

13.2 AMENDMENT

This Agreement may only be amended by written instrument signed by all Co-Owners.

13.3 SEVERABILITY

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

13.4 WAIVER

No waiver of any term shall be deemed a continuing waiver or a waiver of any other term.

13.5 ASSIGNMENT

Licensee may not assign or transfer this Agreement without the prior written consent of all Co-Owners.

13.6 NOTICES

All notices shall be in writing and delivered to the addresses designated by the parties.

13.7 FORCE MAJEURE

Neither party shall be liable for delays or failures in performance resulting from acts of God, war, terrorism, pandemic, or other circumstances beyond reasonable control.

13.8 CONSTRUCTION

This Agreement shall not be construed against the drafter. Headings are for convenience only and shall not affect interpretation.

ARTICLE XIV: EXECUTION AND ACCEPTANCE

14.1 ACCEPTANCE BY USE

By accessing, streaming, downloading, performing, sampling, or otherwise using the Works in any manner, Licensee:

- (a) Acknowledges receipt of this Agreement.
- (b) Confirms understanding of all terms and conditions.
- (c) Agrees to be legally bound by this Agreement.
- (d) Represents and warrants authority to enter into this Agreement.

14.2 EFFECTIVE DATE

This Agreement is effective upon first access or use of the Works by Licensee.

14.3 COUNTERPARTS

This Agreement may be executed in counterparts, each of which shall be deemed an original.

CERTIFICATION

I, THE UNDERSIGNED, HEREBY CERTIFY THAT:

This Detroit–Mumbai Hardcore Music License represents the official, authoritative, and legally binding terms governing all use of the BOOMDAY Works under Nickel 9 Production.

CO-OWNER SIGNATURES

Marshall Bruce Mathers III Co-Owner, Nickel 9 Production.

Signature: _____

Date: _____

Ryan Daniel Montgomery (Royce da 5'9") Co-Owner, Nickel 9 Production.

Signature: _____

Date: _____

LICENSE CLASS: Hardcore Independent Artist License — Executive Tier.
PRODUCTION ENTITY: Nickel 9 Production. **SECURITY CLASSIFICATION:** Maximum Protection. **ENFORCEMENT STATUS:** Active and Vigilant.

BOOMDAY — A NICKEL 9 PRODUCTION DETROIT × MUMBAI *Pressure. Process. Presence. All Rights Reserved Worldwide.*

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